

		where it complies with the requirements for a motion for summary judgment”]; <i>Union School Dist. v. Rafferty</i> (1964) 226 Cal.App.2d 599, 603 [“speaking motion” to dismiss action as sham “has been superseded by the enactment of Code of Civil Procedure, section 437c, and must be treated as a motion for summary judgment”].) Respondent’s motion to dismiss does not comply with procedural requirements of a motion for summary judgment. The court may treat a nonstatutory motion to dismiss as a nonstatutory motion for judgment on the pleadings. (<i>Saltarelli & Steponovich v. Douglas</i> (1995) 40 Cal.App.4th 1, 5.) A motion for judgment on the pleadings functions as a general demurrer for failure to state facts sufficient to constitute a cause of action, and the rules governing demurrers apply. (Code of Civ. Proc. § 438(c)(1)(B)(ii); <i>Smiley v. Citibank</i> (1995) 11 Cal.4th 138, 146; <i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 999); <i>Templo v. State of Calif.</i> (2018) 24 Cal.App.5th 730, 735 [“motion for judgment on the pleadings is equivalent to a demurrer”].) Demurrers and motions for judgment on the pleadings can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal. 3d 311, 318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994.) Respondent has not requested that the court take judicial notice of any matter. On its own motion, the court takes judicial notice of the judgment (ROA 107) in the Unlawful Detainer action (OCSC Case no. 30-2024-01415172) in which Respondent had Petitioner evicted from trust real property. The judgment in the Unlawful Detainer action only establishes that the trustee owns the subject property, that the trustee gave Petitioner notice to quit, and that Petitioner failed to vacate the subject property. In short, the judgment in the Unlawful Detainer action resolves the narrow issue of the right to possession of the subject property. It does not resolve Petitioner’s claim in her Amended Petition in this action that the Trustee engaged in self-dealing by improperly transferring the subject property to himself. Thus, there are no grounds to grant judgment on the grounds of res judicata or collateral estoppel. Respondent’s argument that the petition is moot relies on extrinsic evidence and is, therefore, not subject to judgment on the pleadings.
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		Likewise, Respondent's argument that the petition fails to state a cause of action is based on extrinsic evidence. In ruling on a motion for judgment on the pleadings, all material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (Code Civ. Proc. § 425.10(a)(1); <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413; <i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 549-50.) Respondent's arguments go the merits of the claims pled in Amended Petition, not to the sufficiency of the pleading. Based on the foregoing, the "motion to dismiss" is denied as procedurally defective; the court exercises its discretion to treat the motion as a motion for judgment on the pleadings and denies such motion. This ruling is without prejudice to Respondent's right to seek the relief requested in a procedurally proper manner. Counsel for Respondent is ordered to give notice.
01378180	Street - Trust	TENTATIVE RULING Case: Street - Trust 01378180 Calendar No.: 2 Date: 06/03/26 MOTION FOR SUMMARY JUDGMENT OR SUMMARY ADJUDICATION (ROA 195) Petitioners Chelsea Vanderpool and Courtney Vanderpool (collectively, "Petitioners") move for summary judgment or, in the alternative, summary adjudication as to the claim in their Amended Petition (ROA 62) that the Lemon Street Irrevocable Trust (the "Trust") should be modified. The motion is opposed by the settlor and former trustee of the Trust, Richard Vanderpool, and the current trustee of the Trust, Randall Beckman. (ROAs 170 and 173.) Petitioners' request for judicial notice (ROA 109) is granted as to Exhibits A and B.